

TAMIL NADU LABOUR WELFARE BOARD, CHENNAI-600 006.

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1. ORGANISATION :

The Tamilnadu Labour Welfare Board was constituted by the Government of Tamilnadu in the year 1971 by an executive order of the Government (G.O.Ms No.222 Labour Dept, dated: 20.2.1971) with the view to promote the Welfare of the employees and their dependents with an adhoc grant of Rs.5 lakh. The Tamil Nadu Labour Welfare Fund Act, 1972 was passed by the State and was given effect from 1.1.1973.

The Statutory Labour Welfare Board was formed with effect from 1.4.1975 with the Minister In-charge of Labour as Chairman. five representatives of employees, five representatives of employers, three members of State Legislative Assembly, four Official members and two Non-Official members.

2. FUNCTIONS OF THE BOARD :

The important provisions of the Act deals with

- ❑ Collection of Labour Welfare Fund
- ❑ Vesting and Application of the Fund.
- ❑ Constitution of the Board.
- ❑ Term of Members.
- ❑ Power to appoint committee.
- ❑ Functions of the Board.
- ❑ Unpaid Accumulations.
- ❑ Deposit of Funds.
- ❑ Placing of Accounts and Audit Report before the State Legislature.
- ❑ Power to make Rules and Regulations.

The Tamilnadu Labour Welfare Fund Rules 1973 deals with

- ❑ Payment of Fines and Unpaid Accumulations by the Employer
- ❑ Maintenance and Audit of Accounts
- ❑ Budget of the Board
- ❑ Additional Expenditure
- ❑ Mode of Payment
- ❑ Payment of Contributions
- ❑ Meetings of the Board
- ❑ Quorum
- ❑ Administrative and Financial Powers of the Secretary
- ❑ Publication of Annual Report

□ Maintenance of Registers by Employers

Form A- Statement showing the particulars of contribution amount paid to the Secretary, Tamil Nadu Labour Welfare Board.

Form B- Register of Wages

Form C- Register of Fines and Unpaid Accumulations

3. LABOUR WELFARE FUND

The Government constitutes Labour Welfare Fund, as per section 3, to which the following are credited to –

- a) All Unpaid Accumulations due to workers
- b) All fines realised from the workers
- c) Deduction made under the proviso to Sub-section(2) of section 9 of the Payment of Wages Act, 1936 and the proviso to Sub-section (2) of section 36 of the Tamil Nadu Shops and Establishments Act, 1947.
- d) Contribution from Employees, Employers and Government,
- e) Any interest by way of penalty, paid under Section 14 of the Tamil Nadu Labour Welfare Fund Act, 1972.
- f) Any Voluntary Donation.
- g) Any amount raised by the Board from other sources to augment the resources of the Board.
- h) Any fund transferred under Sub-section 5 of Section 17 of the Tamil Nadu Labour Welfare Fund Act, 1972.
- i) Any sum borrowed under Section 18 of Tamil Nadu Labour Welfare Fund Act, 1972
- j) Any unclaimed amount credited to the Government in accordance with the rules made under the Payment of Wages Act, 1936 and Minimum Wages Act, 1948.
- k) Grants or Advances made by the Government.
- l) All fines imposed and realised from Employers by Courts for violation of Labour Laws less the deduction made by Courts towards administrative expenses.

Contribution to the Fund by Employee and Employer (Sec 15) and rules 11(a):

Every Employee contributes Rs.10/- per year and every Employer in respect of and such Employee, contributes Rs.20/- per year to the Fund and the Government in respect of each such employee contributes Rs.10/- per year to the Fund.

(Amendment to Tamil Nadu Labour Welfare Fund Rules, 1973 (G.O. Ms.No.16, Labour and Employment (G-2) dated 20.01.2015)

Labour Welfare Fund Contribution Rate:

Year	Employees Contribution	Employers Contribution	Government Contribution	Labour and Employment Department. G.O. No. and Date
1973-1981	Re.1/-	Rs. 2/-	Nil	---
1982-1995	Rs. 2/-	Rs. 4/-	Rs. 2/-	No.1933/ 14.11.1982
1996-1997	Rs. 3/-	Rs. 6/-	Rs. 3/-	No. 67/ 28.05.1996
1998 – 2008	Rs. 5/-	Rs. 10/-	Rs. 5/-	No.159 / 07.12.1998
2009 – 2014	Rs.7/-	Rs.14/-	Rs.7/-	No.91 / 10.07.2009
2015 onwards	Rs.10/-	Rs.20/-	Rs.10/-	No.16/20.01.2015

4. CONSTITUTION OF THE BOARD :

The Board shall consist of twenty members including the chairman who shall be the Minister in charge of Labour and the following members were appointed by the Government : -

- a) five representatives of employers appointed by the State Government in consultation with such organisation of employers in the State ;
- b) five employees representatives to be appointed by the State Government in consultation with such organisation of employees in the State ;
- c) three member of the State Legislature ;
- d) four Government Officials ;
- e) two independent members ;

Provided that if there is no other woman representative in the Board, the question of including woman representative as an independent member would be considered by the Government.

(2) The Board shall elect a Vice-Chairman to perform the duties of the Chairman in his absence.

(3) The term of office of the members of the Board other than official members shall be three years from the date of their appointment and they shall be eligible for reappointment.

Provided that a member of the State Legislature shall cease to be a member of the Board from the date on which he ceases to be a member of the State Legislature.

5. MEMBERS OF THE TAMIL NADU LABOUR WELFARE BOARD.

Chairman	:	Hon'ble Minister for Labour
Official Representatives	1)	Secretary to Government, Labour and Employment Department, Secretariat, Chennai-9.
	2)	Secretary to Government, Finance Department, Secretariat, Chennai-9.
	3)	The Commissioner of Labour, Teynampet, Chennai-6.
	4)	Director of Industrial Safety & Health, Guindy, Chennai-32.
Representatives of Employers	:	Five Members
Representatives of Employees	:	Five Members
Member of State Legislature	:	Three Members
Women Representatives	:	Two Members

6. TAMIL NADU LABOUR WELFARE FUND ACT 1972 AND RULES 1973

The Government of Tamil Nadu enacted the Tamil Nadu Labour Welfare Fund Act in the year 1972. The Tamil Nadu Labour Welfare Fund Rules 1973 were framed in G.O. Ms. No.569, Labour and Employment Department, Dated.4.9.1973 read with Government Memo No.65720/F-3/72-73, Dated. 8.10.1973. The Act came into force from 1.1.1973. The Act provides for the constitution of a fund called “The Labour Welfare Fund” for promoting the welfare of the Labour and for certain other matters connected there within the State of Tamil Nadu. It is applicable to all “Factories” covered under the Factories Act 1948, “Motor Transport undertakings” covered by the Motor Transport Workers Act 1961, “Plantation” covered under the Plantations Labour Act 1951, five or more than five persons “employed by Catering Establishments” covered under the Tamil Nadu Catering Establishments Act 1958 and “Establishments” as defined in section 2(d)(v) of the Tamil Nadu Labour Welfare Fund Act 1972.

7. LABOUR WELFARE SCHEMES

The Tamil Nadu Labour Welfare Board is implementing various welfare schemes for the benefit of the workers who contribute to Labour Welfare Fund. The maximum salary limit for availing the schemes is Rs.25,000/- p.m.

a) LABOUR WELFARE CENTRES

38 Labour Welfare Centres are functioning in Tamil Nadu which consists of Tailoring Section, Pre-school and Reading Room.

i) Tailoring Centres

Wives and unmarried daughters/sisters of workmen who are contributors of the Tamil Nadu Labour Welfare Fund are eligible to undergo training in Tailoring Centre. The course is for one year commencing from January. The trainees are paid a sum of Rs.150/- per month as stipend. At the end of the Course, the trainees are sent to the examinations conducted by the Government. The first rank holder in each centre is given a prize of Sewing Machine for lower as well as higher grade.

ii) Pre-schools

Workers' children in the age group of 2 to 5 are admitted in the creche. Every day the children are given nutritious mid-day meals and 150 ml. milk in the evening. They are given eggs thrice a week and plantain fruits twice a week. Children are imparted education in Tamil, Maths and English and also provided with two sets of Teri-cotton Uniforms. Pre-schools are functioning from June to April of every Year.

b) Educational Scholarship

Scholarships are given to the children of the workers for pursuing their higher education at the rates as indicated below:

1	Master Degree in Engineering	Rs.12000/-
2	Master Degree in Medical	
3	Master Degree in Law	
4	Master Degree in Agriculture	
5	Master Degree in Education	
6	Master Degree in Physical Education	
7	Bachelor Degree in Engineering	Rs.8000/-
8	Bachelor Degree in Medical	
9	Bachelor Degree in Law	
10	Bachelor Degree in Agriculture	
11	Bachelor Degree in Education	
12	Bachelor Degree in Physical Education	

13	Diplomo in Engineering	Rs.5000/-
14	Diplomo in Medicine	
15	Certificate Course in Physical Education	
16	Diplomo in Teacher Training Education	
17	Higher Secondary	Rs.4000/-
18	I.T.I	Rs.4000/-

c) Educational Incentive

Cash Award of Rs.2000/- for 10th standard and Rs.3,000/- for 12th standard is being given to the children of the workers who secured first 10 places in Government Public Examinations in each Educational District.

d) Book Allowance

Book Allowances are given to the children of the workers for pursuing their studies at the rates as indicated below:-

1	Higher Secondary	1000/-
2	Diploma Course	1500/-
3	Bachelor Degree	2000/-
4	Master Degree	3000/-

e) Assistance for Basic Computer Training

Reimbursement of Rs.1000/- is given to five employees/dependants in each Revenue District for Basic Computer Training.

f) Marriage Assistance Scheme

A sum of Rs.10,000/- is given as Marriage Assistance to employees or their Son/Daughter who legally attain the age of marriage.

g) Spectacles Assistance

Reimbursement of the cost of Spectacles of Rs.1000/- is given to the workers on production of Doctor's Prescription.

h) Typewriting /Shorthand Assistance

Workers' children who have passed the Typewriting/Shorthand Govt. Examinations are paid Rs.1000/- for Typewriting Lower, Rs.600/- for Typewriting Higher and Rs.1500/- for Shorthand Lower and Higher.

i) Assistance for Accidental Death and Funeral Expenses

Accidental Death Assistance of Rs.1,00,000/- is given to the dependant of the worker who dies in accident. In addition to that Rs.5,000/- towards Funeral expenses is paid to dependant of worker for Accidental Death.

j) Assistance for Natural Death and Funeral Expenses

Natural Death Assistance of Rs.25,000/- is given to the dependant of the worker. In addition to that Rs.5,000/- towards Funeral expenses is paid to dependant of worker for Natural Death.

k) Hearing Aid, Artificial Limbs and Three Wheelers

Reimbursement of cost of Hearing Aid upto Rs.1000/- is given to hearing impaired workers/dependents. Similarly, cost of Artificial Limbs are also reimbursed and Three wheelers are given free of cost to the handicapped workers.

l) Uzhaippavar Ulagam

A monthly magazine named “Uzhaippavar Ulagam” is published by this Board. This magazine carries articles on judgements related to Labour Disputes, details of Labour Laws, Amendments, Question-Answers and Letters from readers etc. The cost of an issue is Rs.10/-, annual subscription Rs.100/- and Life subscription is Rs.1000/-.

m) Holiday Homes

Holiday Homes have been constructed by the Tamil Nadu Labour Welfare Board at Mamallapuram, Courtallam and Valparai for the workers and their family to enjoy their holidays.

- i) A Holiday Home “Jawaharlal Nehru Illam” is functioning at Mamallapuram from 1988. Forty Four beds are provided therein.
- ii) A Holiday Home “Singaravelar Illam” is functioning at Valparai from 1987. Thirty beds are provided therein.
- iii) A Holiday Home “Thiru-vi-ka Illam” is functioning at Courtallam from 1983. Ninety three beds are provided therein.

Rent For Holiday Homes

Rest House	Labour		Public	
	Double room	Dormitory	Double room	Dormitory
Mamallapuram	70/-	40/-	375/-	190/-
Valparai	80/-	40/-	250/-	190/-
Courtallam				
Ordinary days	60/-	40/-	250/-	125/-
Season days	70/-	60/-	375/-	190/-

n) Jeeva Illam

A rest house named “Jeeva Illam” has been constructed in Chennai in the year 1981 for accommodation of the Office bearers of registered Trade Unions who come to Chennai from various places in Tamil Nadu to conduct cases on behalf of the workers. Sixty two beds are provided therein.

Rent For Jeeva Illam (Trade Union Leaders only)

Double Bed Room - Rs.80/-

Dormitory - Rs.50/-

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9. PUBLIC INFORMATION OFFICER:-

Public Information Officer/ Administrative Officer,
Tamil Nadu Labour Welfare Board,
DMS Campus, Teynampet, Chennai-6.
Phone No.044- 24321542

APPELLATE AUTHORITY:-

Secretary,
Tamil Nadu Labour Welfare Board,
DMS Campus, Teynampet, Chennai-6.
Phone No.044- 24321364

FORM – A

[See Rule 12 (4)]

Statement showing the particulars of contribution Amount paid to the Secretary, Tamilnadu Labour Welfare Board, for the year ending 31st December.

Name and address of the Establishment.	
1. Total No. of employees in the establishment:	
2. No. of persons who are excluded from the payment of contribution.	
3. No. of persons from whom their recovery not made for any other reasons.	
4. No. of persons from whom employee's contributions have been recovered.	
5. Amount of employee's contribution at Rs.5/- per head.	
6. Amount of employer's contribution at Rs.10/- per head.	
7. Total amount remitted (Cheque or Draft No. and date)	
	Authorised signature.

Certificates:

1. Certified that the number of employee shown under Column (1) is correct as per the Muster Roll/Attendance Register.
 - 2.* Certified that the contribution is paid in respect of all employees covered by the Act.
 - 3.* Certified that the contribution in respect of employees covered by the Act has yet to be recovered and it will paid separately.
- (Vide G.O.Ms.No.868, Labour and Employment Department, dt.30.10.1976.
- * Strike out items not applicable.

FORM – B

(See Rule 29)

REGISTER OF WAGES

Name and address of the establishment:						
Month and year	Total No. of Employees	Total emoluments payable during the month including basic Wages, D.A., OT, Bonus.	Amount deducted during the month		Amount actually paid during the month	Balance due to the employees
			Fine	Other deductions		
Jan						
Feb						
Mar						
Apr						
May						
June						
July						
Aug						
Sep						
Oct						
Nov						
Dec						

Authorised signatory

FORM – C

(See rule 29)

Register of Fines and Unpaid Accumulations for the year.....

Name of the Establishment:

Details of Fines and Unpaid Accumulations	Quarter ending 31 st March	Quarter ending 30 th June	Quarter ending 30 th Sept.	Quarter ending 31 st December
1	2	3	4	5
1.Total Realisation under Fines				
2. Total amount being unpaid accumulations* of **				
(i) Basic Wages				
(ii) Overtime				
(iii) Dearness allowance and other allowance				
(iv) Bonus				
(v) Gratuity				
(vi) Any other item of unpaid accumulations				
3. Deductions under Standing Orders				
4. Deductions under Payment of Wages Act				

Signature of the employer.

* See definition “Unpaid accumulation” under Section 2(i) of the Tamilnadu Labour Welfare Fund Act, 1972.

http://www.tn.gov.in/rti/proactive/labour/handbook_e_LWB.pdf

for Secretary.